

The Personal Data Protection Act, No. 9 of 2022 (abbreviated PDPA) is a comprehensive data protection law enacted to regulate the processing of personal data in Sri Lanka. The Act aims to protect the privacy of individuals, establish rights for data subjects, and impose obligations on data controllers and processors.

Background

The Act was passed by the Parliament of Sri Lanka in 2022 to address the growing need for data protection in the digital age. It is designed to safeguard personal data while allowing for legitimate data processing activities.

Key features

Scope and application

The Act applies to the processing of personal data:

Wholly or partly within Sri Lanka

By controllers or processors domiciled or established in Sri Lanka

Related to the offering of goods or services to data subjects in Sri Lanka

Involving the monitoring of data subjects' behavior in Sri Lanka

Data Protection Authority

The Act establishes the Data Protection Authority of Sri Lanka as the primary regulatory body responsible for enforcing the law and promoting data protection practices.

Rights of data subjects

The Act grants several rights to data subjects, including:

Right of access to personal data

Right to rectification of inaccurate data

Right to erasure ("right to be forgotten")

Right to object to processing

Right to withdraw consent

Right to review automated decision-making

Obligations of data controllers and processors

Key obligations include:

Ensuring lawful processing of personal data

Implementing data protection management programs

Conducting data protection impact assessments in certain cases

Appointing Data Protection Officers under specific circumstances

Notifying the Authority and affected individuals of personal data breaches

Cross-border data transfers

The Act regulates the transfer of personal data outside Sri Lanka, requiring adequate protection measures or specific conditions to be met.

Special categories of personal data

The Act provides additional protections for sensitive personal data, including data revealing racial or ethnic origin, political opinions, religious beliefs, health data, and biometric data.

Penalties

The Act empowers the Authority to impose penalties for non-compliance:

For the first instance of non-compliance, a penalty not exceeding ten million rupees may be imposed.

For subsequent non-compliances, an additional penalty of twice the amount imposed for the previous non-compliance may be levied.

The Authority considers several factors when determining penalties, including the nature and duration of the violation, the number of data subjects affected, and any actions taken to mitigate damages.

Implementation timeline

The Act is being implemented in phases. The initial implementation schedule was established and subsequently amended by official gazette notifications:

Phase 1: July 17, 2023

The following part of the Act came into effect as per Gazette No. 2341/59 (dated July 21, 2023):

Part V – Establishment of the Data Protection Authority.

Phase 2: December 1, 2023

The following provisions of the Act came into effect as per Gazette No. 2366/08 (dated January 8, 2024):

Part VI – Director-General and staff of the Data Protection Authority

Part VIII – Fund of the Authority

Part IX – Miscellaneous provisions

Part X – Interpretation

Phase 3: Repeal of March 18, 2025 Implementation Date

Initially, the following provisions were scheduled to take effect on March 18, 2025, according to Gazette No. 2366/08:

Part I – Preliminary provisions

Part II – Rights of data subjects

Part III – Controllers and processors

Part VII – Penalties

However, this implementation date was repealed by Gazette No. 2427/34 (dated March 14, 2025). Consequently, these provisions no longer have a confirmed implementation date, pending further government announcements.

Phase 4: Part IV (Pending)

According to the Data Protection Authority, Part IV, which addresses the 'use of personal data to disseminate solicited messages', will come into operation between twenty-four and forty-eight months from the date the Act was certified by the Speaker. The exact date for implementation of Part IV is yet to be determined.

This phased implementation aims to enable sufficient preparation and compliance by organizations and relevant authorities. The repeal of the third phase indicates further governmental review before these provisions come into force.

Impact and significance

The Personal Data Protection Act represents a significant step in Sri Lanka's digital governance framework. It aligns Sri Lanka's data protection regime with international standards, potentially facilitating cross-border data flows and digital trade. The Act is expected to enhance trust in digital transactions and services while promoting responsible data handling practices across public and private sectors.

See also

[Online Safety Act \(Sri Lanka\)](#)

[General Data Protection Regulation](#)

[Information privacy](#)

[Privacy law](#)

Notes

References

External links

[Official website of the Data Protection Authority of Sri Lanka](#)